

AFTER RECORDING RETURN TO:

Chase Bank, N.A.
Home Lending – Document Recording Services
3415 Vision Drive, Columbus, Ohio 43219

Block: 1-01483 **Lot:** 0047 **Loan No.:** CB-2024-097341
Book: 13487 **Page:** 224 **Instrument No.:** 2024-NY-0094821

MORTGAGE

Consolidation, Extension, and Modification Agreement (CEMA)

STATE OF NEW YORK

COUNTY OF NEW YORK (MANHATTAN)

THIS MORTGAGE is made as of the **8th day of September, 2024**, between:

MORTGAGOR: PATRICIA M. SULLIVAN, an individual residing at 445 East 82nd Street, Unit 7B, New York, New York 10028 (hereinafter "Mortgagor"); and

MORTGAGEE: JPMORGAN CHASE BANK, N.A. (doing business as Chase Bank, N.A.), a national banking association with its principal office at 270 Park Avenue, New York, New York 10017 (hereinafter "Mortgagee").

RECITALS

WHEREAS, Mortgagor is the owner of certain real property located in the County of New York, City and State of New York, as more particularly described herein; and

WHEREAS, Mortgagor has applied to Mortgagee for a refinance loan in the principal amount of **FOUR HUNDRED TWENTY THOUSAND AND NO/100 DOLLARS (\$420,000.00)**; and

WHEREAS, Mortgagee has agreed to make such loan to Mortgagor, evidenced by a certain Promissory Note (the "Note") of even date herewith bearing interest at the fixed rate of **7.125% per annum**, with all outstanding principal and interest due and payable on **October 1, 2044**; and

WHEREAS, to secure repayment of the Note and performance of all obligations thereunder, Mortgagor desires to create a first-priority mortgage lien upon the real property described herein;

NOW, THEREFORE, in consideration of the loan made by Mortgagee to Mortgagor and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Mortgagor hereby **MORTGAGES AND PLEDGES** to Mortgagee the following described property (the "Mortgaged Property"):

PROPERTY DESCRIPTION

Property Address: 445 East 82nd Street, Unit 7B, New York, New York 10028

Block: 1-01483 Lot: 0047 Borough: Manhattan

APARTMENT 7B in the building known as The Stanhope Residences, located at 445 East 82nd Street, Borough of Manhattan, City and County of New York, State of New York, together with an undivided 0.847% interest in the common elements of said condominium building, all as defined and described in the Declaration of Condominium recorded in the Office of the Register of the City of New York, County of New York (the "Register's

Office") on July 14, 1998, under City Register File Number (CRFN) 1998000312789, as amended.

TOGETHER WITH all fixtures, improvements, and appurtenances thereunto belonging or in anywise appertaining, and all rents, issues, and profits thereof; SUBJECT, HOWEVER, to all existing easements, conditions, restrictions, and covenants of record.

LOAN TERMS

Purpose: Refinance (Rate and Term)

Original Loan Amount: \$420,000.00

Interest Rate: 7.125% per annum (30-year fixed rate, 20-year amortization)

Loan Term: 20 years

Note Date: September 8, 2024

Maturity Date: October 1, 2044

Monthly Payment (P&I): Approximately \$3,253.00

COVENANTS OF MORTGAGOR

1. Payment of Indebtedness. Mortgagor shall well and truly pay the principal and interest secured hereby, as provided in the Note, and shall duly perform and comply with all the terms of this Mortgage.

2. Maintenance and Repair. Mortgagor shall keep the Mortgaged Property in good condition and repair, and shall not commit or suffer any waste thereof, and shall not do or permit to be done anything that may materially impair the value of the Mortgaged Property or the security afforded by this Mortgage.

3. Insurance. Mortgagor shall, at its own cost and expense, keep the Mortgaged Property insured against loss or damage by fire and such other hazards as Mortgagee may reasonably require, in amounts, with companies, and under policies satisfactory to Mortgagee.

4. Taxes and Assessments. Mortgagor shall pay all real estate taxes, assessments, water rates, sewer rents, and other charges and claims which may be levied or imposed upon the Mortgaged Property as they become due and payable, and shall, upon request, produce receipts for the payment thereof to Mortgagee.

5. Transfer of Property. If all or any part of the Mortgaged Property or any interest in it is sold or transferred without Mortgagee's prior written consent, Mortgagee may, at its option, require immediate payment in full of all sums secured by this Mortgage. However, this option shall not be exercised by Mortgagee if exercise is prohibited by applicable law as of the date of this Mortgage.

6. Acceleration; Default. If any installment of principal or interest shall remain unpaid for a period of thirty (30) days after the same becomes due, or if Mortgagor shall fail to perform or observe any covenant or condition of this Mortgage or the Note, Mortgagee may, at its option, declare the entire principal sum with all accrued interest thereon, immediately due and payable. In the event of foreclosure, Mortgagor shall be required to pay all costs and expenses of such proceedings, including reasonable attorneys' fees.

7. Release. Upon full payment of all sums secured hereby, Mortgagee shall execute and deliver to Mortgagor a satisfaction and release of this Mortgage in recordable form, which Mortgagor shall record at Mortgagor's expense.

8. New York Lien Law. Mortgagor will receive the advances secured by this Mortgage and will hold the right to receive such advances as a trust fund to be applied first for the purpose of paying the cost of improvement and will apply the same first to the payment of the cost of the

improvement before using any part of the total of the same for any other purpose, pursuant to Section 13 of the New York Lien Law.

SIGNATURES

IN WITNESS WHEREOF, Mortgagor has executed this Mortgage as of the date first written above.

PATRICIA M. SULLIVAN, Mortgagor
Date: September 8, 2024

NOTARY ACKNOWLEDGMENT

STATE OF NEW YORK COUNTY OF NEW YORK

On the **8th day of September, 2024**, before me, the undersigned, personally appeared **Patricia M. Sullivan**, known to me or proved to me on the basis of satisfactory evidence to be the individual whose name is subscribed to the within instrument and acknowledged to me that she executed the same in her capacity, and that by her signature on the instrument, the individual, or the person upon behalf of which the individual acted, executed the instrument.

ROBERT A. CHEN, Notary Public
State of New York, County of New York
My Commission Expires: February 28, 2026
Registration No. 02CH6239847

RECORDED INFORMATION:

Recorded in the Office of the City Register of the City of New York, County of New York
Book: 13487 | Page: 224 | Instrument No.: 2024-NY-0094821
Date of Recording: September 12, 2024
CITY REGISTER, New York County